



IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
COURT – 2

ITEM No.301, 302 & 303

Proceedings under Section 7 IBC

In the matter of: C.P.(IB)/188(AHM)2026

Sheth Fincap Services Private Limited
V/s
Takshashila Corporation LLP

.....Applicant

.....Respondent

And

In the matter of: C.P.(IB)/190(AHM)2026

Sheth Fincap Services Private Limited
V/s
Takshashila Developers Private Limited

.....Applicant

.....Respondent

And

In the matter of: C.P.(IB)/192(AHM)2026

Sheth Fincap Services Private Limited
V/s
Takshashila Resicom Private Limited

.....Applicant

.....Respondent

Order delivered on: 25/09/2026

Coram:

Mrs. Chitra Hankare, Hon'ble Member(J)
Dr. Velamur G Venkata Chalapathy, Hon'ble Member(T)

ORDER

This case is fixed for pronouncement of order. Mr. Arjun Sheth, Advocate appearing for Respondents is absent today. Another counsel appeared and mentioning on behalf of him without filing authority letter or vakalatnama.

The order is pronounced in open court vide separate sheet

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DR. V. G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

sd/-

CHITRA HANKARE
MEMBER (JUDICIAL)



**IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH (COURT-II)**

CP (IB) No. 188 of 2026

And

CP (IB) No. 190 of 2026

And

CP (IB) No. 192 of 2026

*[In the matter under section 7 of the Insolvency and Bankruptcy Code,
2016 read with Rule 4 of the Insolvency and Bankruptcy Application
to Adjudicating Authority Rules, 2016]*

CP (IB) No. 188 of 2026

Sheth Fincap Services Pvt. Ltd

CIN: U65923MH2015PTC261592

3B, Court Chamber 3rd floor

Behind Income Tax Office, Vithaldas

Thackersey Marg New Marine Line,

Mumbai 40000202

Email- bhaveseth@yahoo.com

bshethfinservices@gmail.com

.... Applicant

Versus

Takshashila Corporation LLP (Co-Borrower)

LLPIN: AAC-2724

C/O 560, Silver ARC-B, Open Plot,

Nr. Ashima House, B/h. Town Hall,

Madalpur, Ahmedabad, Ahmedabad,

Gujarat, India, 380006

Email- gihed_ahm@yahoo.com

.....Respondent

AND

CP (IB) No. 190 of 2026

Sheth Fincap Services Pvt. Ltd

sd/-

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CIN: U65923MH2015PTC261592
3B, Court Chamber 3rd floor
Behind Income Tax Office, Vithaldas
Thackersey Marg New Marine Line,
Mumbai 40000202
Email- bhaveseth@yahoo.com

..... Applicant

Versus

Takshashila Developers Private Limited (Co-Borrower)

CIN: U45200GJ2015PTC085167
C/O 560, Silver ARC-B, Open Plot,
Nr. Ashima House, Town Hall,
Madalpur, Ellisbridge, Ahmedabad,
Ahmedabad, Gujarat, India, 380006

.....Respondent

AND

CP (IB) No. 192 of 2026

Sheth Fincap Services Pvt. Ltd

CIN: U65923MH2015PTC261592
3B, Court Chamber 3rd floor
Behind Income Tax Office, Vithaldas
Thackersey Marg New Marine Lines,
Mumbai 400020
Email- bhaveseth@yahoo.com.
bshethfinservices@gmail.com

..... Applicant

Versus

Takshashila Resicom Private Limited (Co-Borrower)

CIN: U45309GJ2021PTC122070
C/O Takshashila Developers Private Limited,
Takshashila Air, B/h Town Hall,
Ahmedabad, Gujarat, India - 380006
Email- kgondalia@taskshashilaair.com

.....Respondent

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Order pronounced on 25.09.2026.

Coram:

MRS. CHITRA HANKARE
HON'BLE MEMBER (JUDICIAL)

MR. VELAMUR G. VENKATA CHALAPATHY
HON'BLE MEMBER (TECHNICAL)

Appearance:

For the Petitioner : Mr. Nipun Singhvi, Adv.
: Ms. Pragati, Tiwari, Adv.
For the Respondent : Mr. Arjun Sheth, Adv.

JUDGEMENT

1. These petitions are filed under Section 7 of the IBC, 2016 by the financial creditor, a registered NBFC by RBI and incorporated on 03.02.2025 and registered CIN U65923MH2015TC261592 seeking initiation of Corporate Insolvency Process against the Corporate Debtors being co-borrowers for the default amount of Rs.7,40,33,665/-. The date of default is stated to be 15.05.2025.
2. It is submitted that the applicant granted a financial facility of Rs.11 crores to three corporate debtors jointly, namely, i) Takshashila Corporation LLP; ii) M/s Takshashila Developers Private Limited, and iii) M/s

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Takshashila Resicom Private Limited, being Co-borrowers who were jointly and severally liable under a duly executed loan agreement dated 15.03.2024. It is also submitted that the said loan amount was distributed through the Corporate Debtor M/s Takshashila Corporation LLP (Co-borrower) for and on behalf of all the borrowers who had unequivocally undertaken joint and several liability for repayment of the said loan facility. It is said that the interest charged was at the rate of 22.50% per annum with an agreed enhancement to 24% per annum, and was secured by irrevocable and unconditional personal guarantees executed by Mr. Kamlesh Gondalia and Mr. Parthil Gondalia along with a duly registered mortgage deed dated 26.03.2024 creating security over immovable properties. As per the loan agreement the loan period is for 12 months from disbursement date (15 March 2024) and shall be accordingly repaid in its entirety in manner set out in the agreement. It also mentions that the interest shall be payable on monthly basis to which the same applies in advance(upfront) and the repayments are specified by way of advance cheques and the loan is secured by certain

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mortgage deeds. It is also specified in the agreement that the dispute resolution on the agreement will be confined to arbitration proceedings to be conducted at Mumbai, Maharashtra under Arbitration and Conciliation Act, 1996.

3. The applicant issued a notice on 12 November 2024 stating that the amount advanced of Rs.11 crore was serviced by interest on monthly basis and the payments were received for period ending 31 Oct 2024. However, the cheque issued dated 7.11.2024 for Rs.18,56,250 for the period ending 1 Nov 2024 to 30 Nov 2024 was dishonoured due to insufficient funds, thereby the applicant stated that on such failure it constitutes an event of default of the terms of the said loan in terms of clause 10 of the loan agreement and accordingly becomes entitled to declare the said loan, interest and other amounts become immediately repayable and with further rights to enforce the security by sale of the mortgaged properties in the manner set in clause 11 of the agreement.
4. It is submitted that they received reply from the respondents vide letter dated 14 March 2025 that they have repaid a part of the said loan amount out of principal

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amount and accordingly a sum of Rs.5,23,00,000 is now outstanding towards principal loan amount and sought a renewal of the said loan amount outstanding of Rs.5,23,00,000 for the period from 16th March 2025 to 15 May 2025. The respondent also sought to draw up a supplemental loan agreement and other incidental documents. This was consented and a supplemental loan agreement was signed between the parties, duly mentioning the loan agreement dated 26 March 2024 (mortgage deed)duly acknowledging an amount of Rs.11,94,52,010 being due under the original amount advanced and a repayment of a sum of Rs.6,71,52,010 was made towards part repayment of the principal amount of the said loan and Rs.94,52,010 was paid towards interest and accordingly an amount of Rs.5,23,00,000 was due and payable as per the revised loan agreement. The said revised loan agreement was renewed by applicant up to 15 May 2025 as the final due date along with stated amount of interest of Rs.21,26,867 as interest. It is also mentioned that the applicant lender has the right to increase the rate of interest in accordance with any directions or guidelines

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of RBI or any other statutory authority, as applicable. The agreement again restricts the dispute resolution to Arbitration under the Arbitration and Conciliation Act 1996 at Mumbai. A deed of continuing security was also obtained dated 18 March 2025.

5. A fresh demand notice was issued on 14.10.2025 by the applicant claiming a repayment on the debt due (on the underlying loan agreement/s for an amount of Rs.6,15,50,525 and another demand letter dated 09.12.2025 for an outstanding amount of Rs.6,59,27,456, demand letter dated 05.01.2026 for an amount of Rs.6,85,52,851 outstanding as on 31.12.2025, further demand notices on 07.02.2026 and 16.04.2026 for an outstanding amount of Rs.7,13,64,908 (outstanding as on 31 March 2026. A notice was also issued on 04.06.2025 under Section 138 of NI Act for dishonour of cheque bearing No.835901 dated 15 May 2025 & 25.06.2025 for Rs.5,23,00,000 drawn on Bank of India, Ellis Bridge Branch Ahmedabad. The applicant also filed a claim before the RP for the personal guarantors who are also

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Guarantors/ directors of the Respondents, M/s Kamlesh Keshavbhai Gondalia and Mr Parthil Kamlesh Gondalia.

6. The respondents had raised objections through legal counsel dated 17.04.2026 to the demand notice issued by applicant stating that they were false dues and penal interest charged in violation of RBI Guidelines and not annexed the stated documents, further not classifying the account as NPA without following the mandatory guidelines of RBI on NPA for classification. This was replied in detail by the applicant vide letter dated 15.05.2026.
7. Even though this Tribunal had vide orders dated 16.06.2026 directed after hearing the applicant to issue notices and directing respondent to file its reply within 7 days of receipt of notice, the same is not complied. This Tribunal vide order dated 28.08.2026 heard the Ld Counsel for respondents who appeared and filed his vakaltnama, on certain objections raised on the disputed amount, directed both the parties to meet and reconcile within 1 week. Both parties were directed to file legal points on the submissions made by way of written submissions by

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affidavit not more than 2 -3 pages. The respondent has not complied with the order.

8. The respondent RP of the Personal Guarantors who were made a party appeared and filed his reply confirming having admitted the claim of the Personal Guarantors who have as per the agreement guaranteed the loan amount.

9. Observations and conclusions:

a. The applicant has proved the debt and default and the supporting secured document being the personal guarantee and mortgage documents have already been admitted under personal insolvency. The respondent has not filed any reply in the matter but wanted to settle the matter if possible but there has been no progress.

b. The financial debt submitted to have been given is by way of loan agreement and no supporting loan sanction document has been produced even though the applicant is a regulated NBFC. But the respondent has acknowledged the loan and offered to repay the debt by rescheduling the same even though the terms of the loan agreement including the interest (apparently the lending rate even though secured by mortgages apparently seems

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to be in deviation with fair practices of regulated NBFC) and the interest rate seems exorbitant and the date of NPA or default is not by norms of a regulated entity. The debt due is only supported by the supplemental agreement which ends the repayment period within the overall period of 1 year of the original loan. Further, the respondent has also repaid a substantial amount including interest but still the outstanding is clearly above Rs. 1 crore.

- c. Takshasila Heights India Pvt Ltd being the parent company is already under insolvency admitted in CP IB 104 of 2024 and its Directors Parth Gondalia and Kamlesh Gondalia are already under personal insolvency have raising various loans from various creditors including executing personal guarantees in favour of various lenders. The respondent has raised certain disputes in the hearing on 28.08.2026 and both parties were directed to meet and reconcile the dispute within 1 week. However, there was no progress and the residual due is more than the threshold limit of Rs. 1 crore, hence the debt is due to be admitted.



d. Even though the CD - Takshahsila Corporation LLP, is a co-borrower through whom the amount is disbursed the other applications CP(IB) 190/2026 and CP(IB) 192/2026 have the common loan agreement and are jointly and severally liable, the debt has become due on all the 3 parties, and separate applications under Section 7 of IBC, 2016 have been filed. Hence, we conclude that the same RP be appointed in all the CIRP proceedings and the RP appointed in Personal Guarantors application admitted by this Tribunal be appointed to enable consolidation of claim (avoid duplication) and the amounts distributed from the assets/resolution of the CD/repayment of the PG is ensured. The IRP may ensure whether the rate of interest charged by the applicant is as per RBI norms.

10. In view of the above, we pass as follows:

ORDER

- I. CP (IB) 188 of 2026, CP (IB) 190 of 2026 and CP (IB) 192 of 2026 are allowed.
- II. The Corporate Debtors namely - Takshashila Corporation LLP, Takshashila Developers Private Limited and Takshashila Resicom Private Limited are



admitted into Corporate Insolvency Resolution Process under section 7(5) of the Code on account of a default of Rs.7,40,33,665/-.

III. The order of moratorium under section 14 of the Code shall come to effect from the date of this order till the completion of the Corporate Insolvency Resolution Process or until this Adjudicating Authority approves the Resolution Plan under sub-section (1) of section 31 or passes an order for liquidation of the corporate debtors under Section 33 of the IBC 2016, as the case may be. However, in terms of Section 14(2) to 14(3) of the Code, the supply of essential goods or services to the corporate debtors as may be specified, if continuing, shall not be terminated or suspended, or interrupted during the moratorium period.

IV. We hereby appoint Mr. Chetan B Patel, Registered Insolvency Professional from the panel provided by IBBI having Reg. No. IBBI/IPA-002/IP-N00819/2019 - 2020/12561, email- chetanpatelcs@gmail.com, under Section 13(1)(c) of the Code to act as Interim Resolution Professional (IRP). He shall conduct the

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Corporate Insolvency Process as per the Insolvency and Bankruptcy Code, 2016 r.w. Regulations made thereunder.

VI. The IRP so appointed shall make a public announcement of the initiation of Corporate Insolvency Resolution Process and call for submissions of claims under section 15, as required by Section 13(1)(b) of the Code.

VII. The IRP shall perform all his functions as contemplated, inter-alia, by sections 17, 18, 20 and 21 of the Code. It is further made clear that all personnel connected with the corporate debtors, its promoters, or any other person associated with the management of the corporate debtors are under legal obligation as per section 19 of the Code to extend every assistance and cooperation to the IRP. Where any personnel of the corporate debtors, its promoters, or any other person required to assist or co-operate with IRP, do not assist or cooperate, the IRP is at liberty to make appropriate application to this Adjudicating Authority with a prayer for passing an appropriate order.

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VIII. The IRP is expected to take full charge of the corporate debtors's assets, and documents without any delay whatsoever. He is also free to take police assistance in this regard, and this Court hereby directs the Police Authorities to render all assistance as may be required by the IRP in this regard.

IX. The IRP shall be under a duty to protect and preserve the value of the property of the corporate debtors and manage the operations of the corporate debtors as a going concern as a part of obligation imposed by section 20 of the Code.

X. The IRP or the RP, as the case may be shall submit to this Adjudicating Authority periodical report with regard to the progress of the CIRP in respect of the Corporate Debtors.

XI. We direct the financial creditor to pay IRP a sum of Rs.2,00,000/- (Rupees Two Lakh Only) for each Corporate debtor in advance within a period of 7 days from the date of this order to meet the cost of CIRP arising out of issuing public notice and inviting claims till the CoC decides about his fees/expenses.

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XII. The Registry is directed to communicate this order to the financial creditor, corporate debtors, and to the Interim Resolution Professional, the concerned Registrar of Companies and the Insolvency and Bankruptcy Board of India after completion of necessary formalities, within seven working days and upload the same on the website immediately after pronouncement of the order. The Registrar of Companies shall update its website by updating the Master Data of the Corporate Debtor in MCA portal specific mention regarding admission of this Application and shall forward the compliance report to the Registrar, NCLT.

XIII. The commencement of the Corporate Insolvency Resolution Process shall be effective from the date of this order.

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DR. V.G. VENKATA CHALAPATHY
MEMBER (TECHNICAL)

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CHITRA HANKARE
MEMBER (JUDICIAL)

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